

25NNCV01985 25NNCV01985

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Case Number: 25NNCV01985 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Demurrer; Motion to Strike

Hearing Date: 9/4/26

CASE NO.: 25NNCV01985

CASE NAME: Maria

Allahverdian v. Estes Express Lines Corporation

Moving Party: Defendant Estes Express Lines Corporation

Responding Party: Plaintiff Maria Allahverdian

Notice: Sufficient

Ruling: Demurrer

OVERRULED in part and SUSTAINED in part with leave to amend; Motion to Strike DENIED.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of contract action. On March 24, 2025, plaintiff Maria Allahverdian filed a Complaint against defendant Estes Express Lines Corporation for incomplete and damaged delivery of a Chandelier. Plaintiff asserted eight causes of action including both breach of contract and tort claims.

On May 27, 2026, Defendant filed the instant demurrer. Defendant also references a motion to strike which was not filed with the Court.

On August 24, 2026, Plaintiff filed an opposition to the demurrer and motion to strike. On August 28, 2026, Defendant filed a reply.

The Court will only substantively address the demurrer, as moving papers regarding the motion to strike were not filed with the Court.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibit: (1)
Document: Order Granting Plaintiff's Motion to Remand and Denying Defendant's Motion to Dismiss. The request is granted.
(Evid. Code, §452(d).)

LEGAL

STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that

appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and

confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendant’s counsel declares they sent Plaintiff’s counsel a meet and confer letter on April 15, 2026, and subsequently met and conferred on April 23, 2026, via telephone but were unable to come to an agreement. (Lucas Decl., ¶¶ 2-4.) Plaintiff’s counsel confirms compliance with meet and confer requirements. (Allahverdian Decl., ¶ 4.)

Based on declarations of parties’ counsel, the parties have complied with meet and confer requirements.

Demurrer

Defendant demurs to the first cause of action for conversion, second cause of action for negligence, fourth cause of action for breach of implied covenant, fifth cause of action for unfair business practices, sixth cause of action for fraudulent deceit, seventh cause of action for intentional misrepresentation (fraud), and eighth cause of action for negligent misrepresentation. (Dem., pp. 2-3.) Defendant demurs on the grounds that (1) Plaintiff’s claims are preempted by federal law because they directly relate to Defendant’s services as a motor carrier, and (2) they are barred by California’s economic loss rule. (Memo., p. 2.)

FAAAA

Affirmative Defense

The Federal Aviation Administration Authorization Act (“FAAAA”) provides that states may not enact or enforce any law related to a price, route, or service of any motor carrier, broker, or freight forwarder with respect to the transportation of property. (49 U.S.C. § 14501(c)(1).) However, this provision does not apply to the intrastate transportation of household goods. (49 U.S.C. § 14501 (c)(2)(B).)

Defendant argues

that courts have consistently held that claims based on delivery timing, handling, damage, and claims processing are preempted because they seek to impose state-law requirements on cross-country motor carriers. (Memo., p. 5.) Defendant argues that Plaintiff's claims fall squarely within the FAAAA preemption because defendant agreed to transport and deliver goods, failed to timely deliver the shipment, the goods were delivered in a damaged condition, and defendant allegedly denied or mishandled the claim. (Ibid.) Defendant also argues that no exceptions apply. (Memo., p. 6.)

In opposition, Plaintiff

argues that nothing under the FAAAA completely bars their claims, and any demurrer based on an affirmative defense can only properly be sustained if the claim is barred, whereas here it is not. (Opp., p. 6.) Further, Defendant argues that the FAAAA does not preempt their claims because preemption does not reach state actions that only affect carrier services in a tenuous, remote, or peripheral manner. (Opp., p. 7.) Plaintiff argues that preemption under the FAAAA does not apply to household goods, and the chandelier in the instant case is a household item, purchased and delivered to a private residence. (Opp., p. 8.) Lastly, Plaintiff argues that a federal court already ruled on the applicability of preemption and remanded the case back to State Court, holding that state law claims were not completely preempted. (Ibid.)

In reply, Defendant

reiterates that Plaintiff's claims fall squarely within the FAAAA because they directly relate to a motor carrier delivering the chandelier. (Reply, p. 2.) Further, Defendant argues that the Federal Court only addressed complete preemption and not ordinary preemption as an affirmative defense. (Reply, pp. 2-3.) Lastly, Defendant argues that Plaintiff cannot establish the household goods exception by simply stating the chandelier was meant for residential use. (Reply, p. 4.)

A demurrer based

on an affirmative defense "cannot properly be sustained where the action might be barred by the defense, but is not necessarily barred." (CrossTalk Prods., Inc. v. Jacobson, (1998) 65 Cal. App. 4th 631.) As previously stated, an exception to preemption under the FAAAA is interstate transportation of household goods. (49

U.S.C. § 14501 (c)(2)(B).) Defendant's affirmative defense requires a factual inquiry which cannot be determined on demurrer. Further, on the face of the pleadings, this affirmative defense does not lead the Court to conclude

Plaintiff has failed to state a claim, and that this affirmative defense completely bars all of Plaintiff's allegations.

Accordingly, Defendant's demurrer to the first, second, fourth, fifth, sixth, seventh, and eighth causes of action on the grounds of affirmative defense is OVERRULED.

Economic Loss Rule

There is no recovery in tort for purely economic loss "unless two conditions are satisfied." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20.) A plaintiff must show that defendant's conduct "violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract; and second, defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (Rattagan, supra, 17 Cal.5th at pp. 20-21.)

Defendant argues that Plaintiff's tort claims, including the first, second, sixth, seventh, and eighth causes of action, fail under the economic loss rule. (Memo., p. 6.) Further, Defendant argues that Plaintiff has not alleged duty or loss outside economic loss resulting from duties that arose under contract. (Ibid.)

In opposition, Plaintiff argues that the economic loss rule does not bar recovery because the case involved property damage, not purely economic loss. (Opp., p. 9.) Further, Defendant argues that pursuant to Rattagan, the economic loss rule does not bar claims of fraud, and that conversion is based on an absolute duty arising outside of the contract. (Opp., p. 9-10.)

In reply, Defendant argues that Rattagan actually held that an intentional fraud claim arising during a contractual relationship may proceed only if its elements can be established independently of the parties' contractual rights and obligations, and if the conduct exposed the plaintiff to a risk of harm beyond the parties' reasonable contemplation at formation. (Reply, p. 5; Rattagan, supra, 17 Cal.5th at 38-39, 44.) Further, Defendant argues that Plaintiff's fraud claims are insufficiently pled as they allege only a broken future contractual promise not intentional misrepresentation of an existing fact. (Reply, pp. 5-6.)

Here, Plaintiff's first cause of action

for conversion does not assert duty arising outside the contractual agreement and is based on economic loss suffered as a result of the alleged breach.

(Comp., ¶¶ 34-39.) Plaintiff's second cause of action for negligence specifically asserts duty arising from contract and damages incurred as a result of the alleged breach. (Comp., ¶¶ 40-43.) Thus, Plaintiff's causes of action for conversion and negligence are barred by the economic loss rule.

With regard to fraud under the economic

loss rule, "[a] plaintiff may assert a tort claim for fraudulent concealment based on conduct occurring in the course of a contractual relationship, if the elements of the cause of action can be established independently of the parties' contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the agreement." (Rattagan, supra, 17 Cal.5th at, 38.) "The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Here, Plaintiff cites damages incurred as

a result of the damaged chandelier, which was within reasonable contemplation of the parties when they entered the agreement, for the sixth, seventh, and eighth causes of action for fraudulent deceit, fraud, and negligent misrepresentation respectively. Moreover, Plaintiff alleges justifiable reliance as it relates to the contractual obligations of Defendant to deliver the Chandelier. Thus, Plaintiff's fraud claims are not established independent of the parties contractual obligations and are barred by the economic loss rule.

Accordingly, Defendant's demurrer to the

first, second, sixth, seventh, and eighth causes of action on the grounds of the economic loss rule is SUSTAINED with leave to amend.

Motion

to Strike

From Plaintiff's opposition, and Defendant's reply, the court gathers that Defendant intends to move to strike Plaintiff's prayer for punitive damages. However, moving papers regarding the motion to strike were not filed with the Court.

Accordingly, the Court will DENY Defendant's motion to strike.

CONCLUSION
AND ORDER

Defendant's demurrer as to the first, second, sixth, seventh, and eighth causes of action on the grounds of the economic loss rule is SUSTAINED with leave to amend.

Defendant's demurrer as to the fourth and fifth causes of action is OVERRULED.

Plaintiff's motion to strike punitive damages is DENIED.

MOVING PARTY shall submit a proposed order consistent with this ruling within 10 days from the date of this hearing and provide notice.